



File No.: EXP202209390

RESOLUTION No.: R/00139/2023

Considering the complaint filed on July 27, 2022, with this Agency by Ms. A.A.A., against VODAFONE ESPAÑA, S.A.U., for not having duly attended to her right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 3, 2022, Ms. A.A.A. (hereinafter, the complainant) exercised her right of access against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the respondent), and her request, as stated by the complainant, did not receive the legally established response.

The complainant points out that she has requested the voice recording that contains the formalization of the contract without her request being attended to.

Along with the complaint, a copy of the request sent to the respondent through the channel provided for the exercise of rights is attached, as well as a screenshot of the response received on 07/25/22, indicating that the requested recording will not be provided.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to provide a response to the complainant and this Agency within one month.

A response was received outside the established deadline, and the respondent states that the request was received correctly and that, as the reason for the complaint is due to disagreement with the terms of the contract, it was considered a broader complaint regarding the adequacy of the contracted services, which is why the specific request was not responded to in a timely manner.

Documentation was provided in response to the access request, informing of the personal data contained in the systems and communicating the impossibility of sending the recording as it was not found in the systems, and this is due to the fact that incoming calls are recorded randomly and for quality purposes; a copy of the contract is provided as evidence of what was contracted.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on October 27, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing procedure, so that within ten working days it could present any allegations it deemed appropriate.

This entity stated, in summary, that the response to the request from this Agency was forwarded to the complaint via electronic notification on November 3, 2022.

Consequently, the submission of allegations or additional documents within the period granted by the Agency is not considered necessary.

FOURTH: After examining the allegations presented by the respondent, they are forwarded to the complainant, so that, within fifteen working days, she may formulate any allegations she considers appropriate:

On November 6, 2022, this Agency, through the Support of the Electronic Notification Service (SNE) and the Enabled Electronic Address (DEH), made available to the complainant the allegations presented by the respondent, so that within fifteen days she could send to this Agency the allegations she deemed appropriate. And on November 17, 2022, the system proceeded to automatically reject the notification due to the passage of ten calendar days since the notification was made available

without accessing its content.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors.

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regarding the obligations that fall upon them, as well as addressing the claims submitted by an interested party and investigating the reasons for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the claim that gives rise to this procedure, the claim was forwarded to the responsible entity for analysis, requiring them to respond to this Agency within one month and to demonstrate that they have provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim to be upheld.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion within a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Before addressing the substance of the issues raised, it should be noted that the present procedure is initiated as a result of the denial of any of the rights regulated by data protection legislation (access, rectification, deletion, limitation, portability, and opposition) and aims to ensure that the guarantees and rights of the affected party are duly restored. Therefore, in this case, only those issues raised by the complaining party that fall within the scope of the aforementioned data protection complaint procedure will be analyzed and assessed.

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That said, in the case analyzed here, the claiming party exercised their right of access to the voice recordings generated by the contract, and, after the period established according to the aforementioned regulations had elapsed, their request did not receive a response. However, during the processing of the present procedure, the entity has responded to the requested right of access, providing the data subject to processing, a copy of the contract, and communicating that they do not have recordings.

Consequently, the respondent, during the processing of the present procedure, has addressed the requested right of access by indicating that they do not have the requested recording. However, it should be noted by this Agency that, according to the provisions of Article 98 of Royal Legislative Decree 1/2007, contracts concluded by telephone are legal but require written ratification or another durable medium and will only be binding once the offer has been accepted by signature or by sending written acceptance.

Therefore, this Agency only has jurisdiction over personal data, and cannot assess information concerning possible contracts signed or incidents related to them, nor resolve civil matters, such as

those related to the civil or commercial validity of the contract, the proper provision of contracted services, or the interpretation of contractual clauses, regardless of whether other regulations support the obtaining of such information, such as, among others, Royal Legislative Decree 1/2007, which approves the General Law for the Defense of Consumers and Users, and Law 7/1993, on general contracting conditions.

The determination of the conditions of the contractual or commercial provision, based on an interpretation of the contract signed between the parties and its correct application, must be pursued before the competent administrative or judicial bodies, as it exceeds the jurisdictional scope of the Agency.

Among the bodies that issue binding resolutions for these purposes are the Consumer Arbitration Boards (provided that the creditor voluntarily submits to them), the Telecommunications User Attention Office (www.usuarioteleco.gob.es), or the judicial bodies. Decisions from consumer organizations and municipal consumer offices, among others, are not binding.

Consequently, it is appropriate to estimate the present claim on formal grounds, as the response was issued late without requiring additional actions by the data controller.

FIRST: ESTIMATE on formal grounds the claim made by Ms. A.A.A. against the entity VODAFONE ESPAÑA, S.A.U. However, it is not appropriate to issue a new certification by said entity, as the response was issued late, without requiring additional actions by the responsible party.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to VODAFONE ESPAÑA, S.A.U.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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